

25NNCV01760 25NNCV01760

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 25NNCV01760 Hearing Date: August 3, 2026 Dept: P

[TENTATIVE] ORDER GRANTING

DEFENDANT'S MOTION TO COMPEL FORM INTERROGATORIES – SET ONE, SPECIAL INTERROGATORIES – SET ONE, DEMAND FOR INSPECTION OF DOCUMENTS, SET ONE and GRANTING MONETARY SANCTIONS IN PART

I. INTRODUCTION

On March

14, 2025, Plaintiff Leelit Minasyan ("Plaintiff") filed this action against Defendant Jorge Galan ("Defendant"), asserting a single cause of action for negligence arising out of a March 17, 2023, motor vehicle collision.

On June 23, 2026, Defendant filed three motions to compel Plaintiff's initial responses to Form Interrogatories, Special Interrogatories, and Requests for Inspection, and requested monetary sanctions. No opposition has been filed.

II. LEGAL STANDARD

Under Code of Civil Procedure section 2030.290(a), if a party fails to respond to interrogatories, they waive any objections, including those based on privilege or work product protection. When a party does not provide timely responses, the propounding party is entitled to move for an order compelling responses. Pursuant to Code of Civil Procedure section 2030.290(b), the Court must order the responding party to provide responses without objections.

If a party fails to serve a timely response to a demand for inspection, copying, testing, or sampling, the propounding party may move for an order

compelling responses. (Code Civ. Proc., § 2031.300, subd. (b).) The failure to timely respond also waives any objections to the demands, including objections based on privilege or work product protection, unless the court relieves the responding party from the waiver upon a showing that the failure resulted from mistake, inadvertence, or excusable neglect and that the responding party has since served responses that are substantially code-compliant. (Code Civ. Proc., § 2031.300, subd. (a).).

III. ANALYSIS

FROGS and SPROGS

Defendant served FROGs and SPROGs, Set One on Plaintiff on July 31, 2025. Responses were due on September 2, 2025. Defendant represents that Plaintiff failed to serve any responses. Thereafter, on September 18, 2025, Defendant sent a meet and confer letter requesting verified responses without objections by September 26, 2025, but no responses were received. Plaintiff has not filed an opposition or otherwise disputed these facts. Based on the foregoing, Defendant is entitled to an order compelling verified responses without objections. (Code Civ. Proc., § 2030.290.)

Demand for inspection

Defendant served Demand for Inspection, Set One on Plaintiff on July 31, 2025. Responses were due on September 2, 2025. Defendant represents that Plaintiff failed to serve any responses. Defendant thereafter sent a meet and confer letter requesting verified responses without objections by September 26, 2025, but no responses were received. Plaintiff has not filed an opposition or otherwise disputed these facts. Based on the foregoing, Defendant is entitled to an order compelling verified responses without objections. (Code Civ. Proc., § 2031.300.)

IV. SANCTIONS

Code of Civil Procedure section 2023.030 provides that, “[t]o the extent authorized by the chapter governing any particular discovery method . . . , the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose . . . [monetary, issue, evidence, or terminating] sanctions against anyone engaging in conduct that is a misuse of

the discovery process” Code of Civil Procedure section 2023.010 provides that misuse of the discovery process includes, but is not limited to, failing to respond or to submit to an authorized method of discovery. California Rules of Court, rule 3.1348, subdivision (a) states: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.”

Defendant requests monetary sanctions totaling \$3,000, representing \$1,000 for each of the three motions. Counsel declares an hourly rate of \$250 and estimates four hours of attorney time per motion, including reviewing the file, preparing the motion, reviewing any opposition, preparing a reply, and appearing at the hearing. (Lira Decl., ¶ d.)

Because Plaintiff filed no opposition and the three motions involve substantially identical legal and factual issues, the Court finds the requested amount excessive. The Court instead awards attorney's fees for 1.5 hours of work apportioned across the three motions.

The Court GRANTS request for monetary sanctions consisting of \$375.00 in attorney's fees (1.5 hours × \$250/hour) payable by Plaintiff and Plaintiff's counsel, jointly and severally, to Defendant within 30 days of notice of this order.

V. CONCLUSION AND ORDER

The Court GRANTS Defendant's motions to compel SPROGs – Set One, FROGs - Set One and demand for inspection of documents – Set One. Plaintiff is ordered to respond within 30 days of this order. The Court further GRANTS monetary sanctions in the amount of \$375.00.

Defendant is to give notice.

Dated August 3, 2026

JARED D. MOSES
JUDGE OF THE SUPERIOR COURT